Chapter Two: Selective Outrage

The intelligence agencies' capabilities are astonishing. They have the ability to plant malware on their targets' computers: either remotely, or by intercepting them before they are delivered to the customer. They can approach targets when they are playing computer games, monitor their web browsing habits, turn on webcams and microphones remotely and invisibly, use a mobile phone to bug a room, or a computer, and far more besides. They can read text messages and listen to phone calls. They have extraordinary access to the fibre-optic cables which carry data between countries and continents. The NSA and allies scamper through the plumbing of the internet like mice through the nooks and crannies of an old house. Huge slices of electronic traffic can be warehoused for days or even weeks. Powerful computers and ingenious algorithms can search for patterns and connections in a way that only recently would have seemed unimaginable.[37]

The outline of these efforts was already known before the Snowden leaks, even if the code-names and techniques were not. The best-known programme, PRISM, stems from the Bush-administration Protect America Act. It collects data from companies under Section 702 of the Foreign Intelligence Surveillance Act (FISA) Amendments Act 2008. The physical and digital monitoring of individuals is supervised both by congressional committees and by the Foreign Intelligence Surveillance Court (also known as the FISA court).[38] The NSA must seek a warrant from this court if it believes that there is a greater than 50% chance of an American 'person'—ie citizen or resident—having their privacy breached.